

CHAPTER II.

The Bill.

First proceeding.

The first proceeding in a suit in Chancery is by Bill. This Bill formerly consisted of nine parts,—1. The address.—2. The names of the parties.—3. A statement of the facts.—4. A general charge against the Defendant.—5. Particular charges in answer to what the Defendant pretends to be his case.—6. An averment that the Defendant's conduct was contrary to equity and good conscience.—7. The interrogatories, which the Defendant was bound to answer substantially and literally.—8. The prayer for relief.—And 9. The prayer for process or writ of subpoena, to compel the defendant to appear and answer; and the bill was to be signed by the Counsel. The form is now much shortened, and embraces only the 1st, 2nd, 3rd, 8th and 9th of the above mentioned parts; and neither the bill, nor any other pleading, needs be signed by Counsel. The Bill is now in the shape prescribed by the following order:—

1850.
XI.
Form of Bill.

The bill shall in future be in the form of a petition, addressed to the Chancellor. The address and conclusion shall be as in Schedule A. to these Orders appended. It must contain—

1. The name and description of each party complainant.
2. A statement of the plaintiff's case in clear and concise language.

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